

or usage has not put such a construction upon the instrument, will infer the donor's intention to have been that the trustees should themselves exercise their discretion in the election of a clerk for the benefit of the parish (*e*); but if the language of the instrument, or the evidence of common usage, prevent such a construction, then the parishioners, as the *cestuis que trust* and beneficial owners of the advowson, will be entitled to elect, and the trustees will be bound to present the person upon whom the choice of the electors shall fall (*f*). Had the point been unprejudiced by decision, Lord Eldon doubted whether the Court could execute such a trust, at least otherwise than *cy près* (*g*), but, as authority has now clearly settled that the Court must undertake the trust, notwithstanding the difficulties attending it, the only subject for inquiry is, *in what manner* a trust of this kind will be executed.

10. **Meaning of "parishioners and inhabitants."**—The expression "parishioners and inhabitants" is, in itself, [*87] *extremely vague, and has never acquired any very exact and definite meaning (*a*); but, this doubt removed, another question to be asked is, are women, children, and servants, who are parishioners and inhabitants, to be allowed to vote? It seems the extent of the terms must be taken *secundum subjectam materiam*, with reference to the nature of the privilege which the *cestuis que trust* are to exercise (*b*), and, if so, none should be admitted to vote, who, from poverty, infancy, or coverture, are presumed not to have a will of their own (*c*).

(*e*) See *Edenborough v. Archbishop of Canterbury*, 2 Russ. 106, 109; *Attorney-General v. Scott*, 1 Ves. 413; *Attorney-General v. Foley*, cited *ib.* 418.

(*f*) *Attorney-General v. Parker*, 3 Atk. 577, *per* Lord Hardwicke; *Attorney-General v. Forster*, 10 Ves. 338, 341, *per* Lord Eldon; *Attorney-General v. Newcombe*, 14 Ves. 6, 7, *per eundem*.

(*g*) *Attorney-General v. Forster*, 10 Ves. 340, 342.

(*a*) See *Attorney-General v. Par-*

ker, 3 Atk. 577; *Attorney-General v. Forster*, 10 Ves. 339, 342. See further as to the Clerkenwell case, *Carter v. Cropley*, 8 De G. M. & G. 680. By parishioners and inhabitants in *vestry* assembled are meant the persons who by the existing law constitute the vestry. *In re Hayle's estate*, 31 Beav. 139; and see *Etherington v. Wilson*, 20 L. R. Eq. 606, 1 Ch. D. 160.

(*b*) See *Attorney-General v. Forster*, 10 Ves. 339.

(*c*) See *Fearon v. Webb*, 14 Ves.

27.